Form No. INC-33

e-MOA (e-Memorandum of Association)
[Pursuant to Schedule I (see Sections 4 and 5) to the Companies Act, 2013)]



Form language

(•) English ( ) Hindi

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

*** Table applicable to company as notified under schedule I of the Companies Act, 2013**

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES
B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING A SHARE CAPITAL
C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING A SHARE CAPITAL
D - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND NOT HAVING SHARE CAPITAL
E - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND HAVING SHARE CAPITAL)

A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

Table A/B/C/D/E

1 The name of the company is

SPIRITUAL HOMEO PRIVATE LIMITED

2 The registered office of the company will be situated in the State of

Telangana

3 (a) The objects to be pursued by the company on its incorporation are:

1. To carry on the business of manufacturing, formulating, blending, preparing, processing, purchasing, exporting, importing, selling, dealing in Homoeopathic Medicines, Pharmaceutical Preparations, formulations, derivatives, compounds, essences, extracts, tinctures tablets and capsules.
2. To prepare and manufacture standardisedHomoeopathy and other traditional medicaments of pure quality.

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To acquire, and take over the whole or any part of the business, rights, goodwill, trademark, property and liabilities of any other person or person(s), firm, corporation or undertaking, either existing or newly engaged in or carrying on and conducting any business which this company is authorized to carry on and to pay for the same either in cash or shares or party in cash and partly in shares.

2. To apply for, purchase or otherwise, acquire any patent rights, copy rights, trademarks, formulae, licenses, lease concessions, conferring any exclusive or limited right to use, or any secret or to otherwise information about as to any invention which may seem capable of being used for any of the purposes of the company or the acquisition of which may directly or indirectly for the benefit of the company and to use, exercise, develop or grant licenses in respect of or otherwise turn into account the property or information so required.

3. To enter into any arrangement with any Government or authority whether municipal, local or otherwise or any person, that may seem conducive to the company objects or any of them, and to obtain from any such Government of authority any rights, privileges and concessions which the Company may think it desirable to obtain and to carry out, exercise and comply may think it desirable to obtain, and to carry out, exercise and comply with any such arrangement, rights, privileges and concessions.

4. To negotiate and enter into agreements and contracts with foreign individuals, companies, corporations and other organizations for technical, financial or any other assistance for the purpose of activating research and development, of manufacturing projects on the basis of know-how, financial participation or technical collaboration and acquire necessary formulae, patents rights, for furthering the objects of the company.

5. To procure the registration of the company in any country or place in any part of the world.

6. To amalgamate with any other company having all or any of its

objects similar to the objects of the company in any manner, whatsoever, whether with or without a liquidation of the company.

7. To establish, for any of the objects of the company branches or to establish any firm or firms or promote any company or companies place in or outside India as the company may think fit.

8. To invest and deal with the surplus money of the company, not immediately required, in or upon such investments (other than shares) in the manner as may from time to time be determined.

9. To spend surplus money, to receive money as deposit or loan as per provisions of the Act for the purpose of company and on such terms as may seem expedient and in with respect to any particular to customer of, or any other person having dealings with the company but not amounting to banking business as defined in the Banking Regulations Act, 1949.

10. To send out to foreign countries, its Directors, Employees or any other person or persons for investigating possibilities of any business or trade or for procuring and buying any machinery or establishing trade connections or in promoting the interest of the company and to pay all expenses incurred in this connection.

11. To pay out from the funds of the company all costs, charges and expenses incidental to the company and any company promoted by the company in India or outside India and shall have the options to issue fully paid up shares in lieu, thereof.

12. To accept and to make gifts in property, movable and immovable and to aid peculiarly or otherwise to any association, body or movement for any

object the solution, settlement or surmounting of industrial or labour problems or troubles or the promotion of industry or trade..

13. To sell, lease, exchange, or otherwise deal with the undertakings and all or any of the property, assets, rights and effect all or any of the part thereof for such consideration as the company may think, fit, subject to the provisions of the Companies Act, 2013, or any law for the time being in force.

14. To distribute among the members any property of the company or any proceeds of sale or disposal of any property of the company in the event of winding up but so that no distribution amounting to a reduction of capital be made except with the sanction, if any, for the time being as required by law.

15. To grant pensions, allowances, gratuities and bonuses to existing or former employees and officers (including directors) of the company or their dependents or connections and to make payments towards insurance for any such person and to establish, join and support trusts, funds or schemes, whether contributory, with a view to provide pensions or allowances for such persons or to make contributions to other associations, institutions, trusts, funds, schemes, clubs or conveniences calculated to benefit such persons.

16. To compensate for the loss of office of to any Managing Director or other officers of the company within the limitations prescribed under the Companies Act, 2013 or other statute or rule having the force of law and to make payments to of any other person whose office of employment or duties may be determined by virtue of any transaction in which the company is engaged.

17. To make donations to such persons or institutions either in cash or any other assets as may be thought directly conducive to any of the Companys objects or otherwise expedient and in particular to remunerate any person or corporation introducing business to the Company and to subscribe or guarantee money for charitable, benevolent or useful objects and to establish and support or aid in the establishment and support of associations, institutions, funds, trusts, and conveniences for the benefit of the employees or ex-employees or of persons having dealing with the company or the dependents, relatives or connections of such persons, and in particular friendly or other benefit societies and to grant pensions, allowances, gratuities, bonuses, either by way of annual payments or a lump sum , and to make payments towards insurance and to form and contribute to provident and benefit funds, to or for such persons.

18. To apply for and obtain any Act of Parliament, charter, government state or Municipality or provisional order/license of any authority for enabling the company to carry out its objects into effect or for extending any of the powers of the company or for any other purpose which may seem expedient and to make representations against any proceedings or applications which may seem to prejudice, directly or indirectly, the interest of the company.

19. To agree, to refer, to arbitrate and to refer to arbitration any dispute, present or future, between the company and any other company, firm or individual, and to submit the same to arbitration in India or abroad either in accordance with Indian or any foreign system of law.

20. To establish or support or aid in the establishment of associations, institutions, funds, trusts, and conveniences for the benefit of past and present employees or Directors of the Company or the dependents of such persons and to grant pensions and allowances, to make payments towards insurance, to sub scribe or guarantee money for charitable or benevolent objects or useful objects for general public.

21. To promote any other company or companies for the purpose of acquiring or taking over all any of the property, rights, and liabilities of the company or for any other purpose which may directly or indirectly affects benefit the company.

22. To create any reserve fund, sinking fund, insurance fund or any other special funds whether for repairing, improving, guaranteeing research, extending or maintaining any of the property of the company or for any other purpose conductive to the interest of the company.

23. Subject to the provisions contained in the Companies Act, 2013 to distribute as dividend or bonus among the members or to place to reserve or otherwise apply as the company may from time to time, think fit any money received by way of premium on shares or debentures issued at a premium and any money received in respect of dividends accrued on forfeited shares.

24. To apply, for promote and obtain any order, regulation, or other authorization or enactment, which directly or indirectly benefits the Company.

25. To carry on the business of education and organize the exhibitions and promote conferences, meetings and symposia on its own and on behalf of the universities

whether in India or elsewhere to get the admissions to the universities and schools and to conduct the training and personality development, coaching classes, accommodation and placement services.

26. To issue or allot fully paid or partly paid shares from the capital of the company in payment or part payment of any movable or immovable property of the company purchased or otherwise acquired by the company for or any service rendered to the company.

27. To take or hold mortgages, liens and charges to secure the payment of purchase price or any unpaid the balance of purchase price, any part of the Companys property of any kind sold by the Company or any money due by towards the company, or due to the Company.

28. To allowed directly or indirectly to (a) make any loan to any other body corporate; (b) give any guarantee, or provide security, in connection with a loan made by any other person to , or to any other person, by any body corporate; and (c) acquire by way of subscription, purchase or otherwise the securities of any other body corporate, subject to the provision of the Companies Act, 2013 and Rules made there under.

29. To borrow monies for and on behalf of the Company from time to time for the business of the Company with or without security and on such terms and conditions as the Board may deem fit, not withstanding that (the money or monies to be borrowed, together with the monies already borrowed by the Company (apart from temporary loans obtained from the Companys bankers in the ordinary course of business) may

exceed the aggregate of the paid up capital of the Company and its free reserves.

30. To mortgage and or to create charge on, all or any part of the immovable properties of the company wherever situated both present and future and or creating a floating charge on all or any part of the immovable properties of the company and the whole of the undertaking/ undertakings of the company in favor of the securities and charge holders to secure an amount borrowed or to be borrowed by the company within the overall ceiling limits as fixed by the members of the Company and as specified in the provisions of the Companies Act. 2013.

31. To pay out from the funds of the company all or any expenses, which the Company may lawfully pay for the services, rendered for formation and registration and for promotion of any other company by it subject to the provisions of the Act.

32. To insure any of the properties, undertakings, contracts, risk or obligations of the company in any manner whatsoever and to establish or support, any association, institutions, schools, hospitals, guest houses, clubs, funds and trusts which may be considered beneficial to any employee(s) or ex-employee(s) and to officer(s) and ex-officer(s) of the company or the dependents of any such persons.

33. To aid and support, any person, association, body or movement whose object is the solution, settlement, or surmounting of industrial or labour problems or the promotion of any industry or trade, business of the company or the promotion of science, technology, cultural activities, sports, environment or rural development and other social and welfare activities.

34. To refer all questions, disputes or differences arising between the company and any other person (other than director of the company) in connection with or in respect of any matter relating to the business or affairs of the company or arbitration in such manner and upon such terms as the company may deem for or refer any matter relating to the business or affairs of the Company to arbitration in such manner and upon such terms as company and such other person may mutually agree upon in each case and such reference to arbitration may be in accordance with the provisions of the Arbitration Act 1940 or any other any act for time being in force and the rules of the international chamber of commerce relating to arbitration and to institute legal proceedings or defend any proceedings and to appoint advocates, consultants, or advisors in this behalf.

35. To enter into negotiations, technical, financial, or otherwise with any person or government for obtaining any grant, license or on other terms, formulae and other rights and benefits, and to obtain technical information, know how and expert advice for the production, manufacture and export or sale of all types of goods which the company is authorized to produce or to deal in.

36. To open and operate any type of bank accounts with any scheduled Bank single or jointly among the board of directors and obtain credit facilities with or without securities for its business.

37. To establish or assist in establishing, faculties or departments of scientific and technical, communication at any universities or other seats of learning and to print, publish, publicize and distribute the proceedings or reports of the

Institute(s), Universities or any papers, journals, communications, treatises or documents dealing with scientific and technical communication, or their application, or subjects connected therewith, by all available means including the press, radio, television and cinema and Visa processing and guidance to the persons going abroad.

38. To train or pay for training in India or abroad of any Companys employee or officer of the company or any candidate in the interest or furtherance of the Companys objects and To receive grants, subsidies, contributions, donations, loans, advances or other moneys or deposits of whatsoever nature from state/authority/ Government.

4 The liability of the member(s) is limited, and this liability is limited to the amount unpaid if any, on the shares held by them.

The liability of the member(s) is limited
The liability of the member(s) is Unlimited

5 Every member of the company undertakes to contribute:

(i) to the assets of the company in the event of its being wound up while he is a member, or within one year after he ceases to be a member, for payment of the debts and liabilities of the company or of such debts and liabilities as may have been contracted before he ceases to be a member; and

(ii) to the costs, charges and expenses of winding up (and for the adjustment of the rights of the contributories among themselves), such amount as may be required, not exceeding * _____ rupees.

(iii) The share capital of the company is 100000 rupees, divided into

Equity Share	Shares of	10	Rupees each		10000

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☑ We, the several persons, whose names and address are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association, and we respectively agree to take the number of shares in the capital of the company set against our respective names:

☐ I, whose name and address is given below, am desirous of forming a company in pursuance of this memorandum of association and agree to take all the shares in the capital of the company:

We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details					
S. No.	***Name, Address, Description and Occupation**	**DIN / PAN / Passport number**	**No. of shares taken**	**DSC**	**Dated**
1	PRASHANTH KUMAR VAIDYA MIG-194,ROAD-1,KUKATPALLY, KPHB COLONY, BALANAGAR MANDAL, Tirumalagiri Telangana 500072 Kukatpally Hyderabad India	ASAPV9746L	5000 Equity,0 Preference	PRASHANTH KUMAR VAIDYA	16/09/2023
2	RAMAKRISHNA CHANDURI 1-8-6, Plot No-19, HANUMANNAGAR, CHAITANYAPURI, Saroornagar Telangana 500060 Chaithanyapuri Colony K.V.Rangareddy India	AOWPC1184M	5000 Equity,0 Preference	RAMAKRISHNA CHANDURI	16/09/2023
Total shares taken			10000 Equity,0 Preference		

Signed before me					
Membership type of the witness ***(ACA/FCA/ACS/FCS/ ACMA/FCMA)***	***Name of the witness**	***Address, Description and Occupation**	**DIN / PAN / Passport number / Membership number**	**DSC**	**Dated**
FCS	K SUDARSAN	FLAT NO.402, ABOVE YES BANK, MALAKPET, HYDERABAD, TELANGANA-500036, INDIA.	12589	KAMBAM SUDARSAN	16/09/2023

7 Shri / Smt _____ _____ Of _____ resident of _____ aged _____ years shall be the nominee in the event of death of the sole member.